

HOUSE BILL NO. 323

INTRODUCED BY S. FITZPATRICK

A BILL FOR AN ACT ENTITLED: "AN ACT ALLOWING A COUNTY TO PROVIDE A SALARY TO RESERVE
DEPUTY SHERIFF'S OFFICERS; AND AMENDING SECTION 7-4-2503, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 7-4-2503, MCA, is amended to read:

"7-4-2503. Salary schedule for certain county officers -- county compensation board. (1) (a) The salary paid to the county treasurer, county clerk and recorder, clerk of the district court, county assessor, county superintendent of schools, county sheriff, county surveyor in counties where county surveyors receive salaries as provided in 7-4-2812, justice of the peace, county coroner, and county auditor in all counties in which the office is authorized must be established by the county governing body based upon the recommendations of the county compensation board provided for in subsection (4).

(b) Except as provided in subsection (2), the annual salary established pursuant to subsection (1)(a) must be uniform for all county officers referred to in subsection (1)(a).

(2) (a) An elected county superintendent of schools must receive, in addition to the salary based upon subsection (1), the sum of \$400 a year, except that an elected county superintendent of schools who holds a master of arts degree or a master's degree in education, with an endorsement in school administration, from a unit of the Montana university system or an equivalent institution may, at the discretion of the county commissioners, receive, in addition to the salary based upon subsection (1), up to \$2,000 a year.

(b) The county sheriff must receive, in addition to the salary based upon subsection (1), the sum of \$2,000 a year. The additional salary provided in this subsection (2)(b) must be included as salary for the purposes of computing the compensation for undersheriffs and deputy sheriffs as provided in 7-4-2508.

(c) In addition to the salary provided for in subsections (1) and (2)(b), the county sheriff may receive any additional salary as determined by the board of county commissioners. The additional salary provided in this subsection (2)(c) must be included as salary for the purposes of computing the compensation

1 for undersheriffs and deputy sheriffs as provided in 7-4-2508.

2 (d) The county sheriff must receive a longevity payment amounting to 1% of the salary determined
3 under subsections (1) and (2)(b) for each year of service with the sheriff's office. The payment, nonpayment,
4 increase, lack of increase, or decrease of the discretionary salary under subsection (2)(c) has no impact on the
5 longevity payment. The additional salary amount provided for in this subsection may not be included in the
6 salary for purposes of computing the compensation for undersheriffs and deputy sheriffs as provided in 7-4-
7 2508.

8 (e) If the clerk and recorder is also the county election administrator, the clerk and recorder may
9 receive, in addition to the base salary provided in subsection (1)(a), up to \$2,000 a year. The additional salary
10 provided for in this subsection (2)(e) may not be included as salary for the purposes of computing the
11 compensation of any other county officers or employees.

12 (f) The county treasurer, clerk of district court, and justice of the peace may each receive, in
13 addition to the base salary provided in subsection (1)(a), up to \$2,000 a year. The additional salary provided for
14 in this subsection (2)(f) may not be included as salary for the purposes of computing the compensation of any
15 other county officers or employees.

16 (g) The county coroner may be a part-time position, and the salary may be set accordingly.

17 (h) The justice of the peace for a justice's court of record may receive, in addition to the base
18 salary provided in subsection (1)(a), compensation up to an amount allowed by 3-10-207.

19 (i) A reserve deputy sheriff's officer may be paid a salary set by the board of county
20 commissioners.

21 (3) (a) Subject to subsection (3)(b), the salary for the county attorney must be set as provided in
22 subsection (4).

23 (b) If the uniform base salary set for county officials pursuant to subsection (1) is increased, then
24 the county attorney is entitled to at least the same increase unless the increase would cause the county
25 attorney's salary to exceed the salary of a district court judge.

26 (c) (i) After completing 4 years of service as deputy county attorney, each deputy county attorney
27 is entitled to an increase in salary of \$1,000 on the anniversary date of employment as deputy county attorney.
28 After completing 5 years of service as deputy county attorney, each deputy county attorney is entitled to an

1 additional increase in salary of \$1,500 on the anniversary date of employment. After completing 6 years of
2 service as deputy county attorney and for each year of additional service up to completion of the 11th year of
3 service, each deputy county attorney is entitled to an additional annual longevity salary increase of \$500 or a
4 greater amount based on the schedule developed and recommended by the county compensation board as
5 provided in subsection (4). Any additional annual longevity salary increase provided for in this section after the
6 11th year of service may not exceed the amount provided in the schedule developed and recommended by the
7 county compensation board.

8 (ii) The years of service accumulated after the 11th year of service as a deputy county attorney
9 prior to July 1, 2015, may not be included in the calculation of the longevity increases by the county
10 compensation board under this section.

11 (iii) The years of service as a deputy county attorney accumulated prior to July 1, 1985, must be
12 included in the calculation of the longevity increase.

13 (4) (a) There is a county compensation board consisting of:

14 (i) the county commissioners;

15 (ii) three of the county officials described in subsection (1) appointed by the board of county
16 commissioners;

17 (iii) the county attorney;

18 (iv) two to four resident taxpayers appointed initially by the board of county commissioners to
19 staggered terms of 3 years, with the initial appointments of one or two taxpayer members for a 2-year term and
20 one or two taxpayer members for a 3-year term; and

21 (v) (A) subject to subsection (4)(a)(v)(B), one resident taxpayer appointed by each of the three
22 county officials described in subsection (4)(a)(ii).

23 (B) The appointments in subsection (4)(a)(v)(A) are not mandatory.

24 (b) The county compensation board shall hold hearings annually for the purpose of reviewing the
25 compensation paid to county officers. The county compensation board may consider the compensation paid to
26 comparable officials in other Montana counties, other states, state government, federal government, and private
27 enterprise.

28 (c) The county compensation board shall prepare a compensation schedule for the elected county

1 officials, including the county attorney, for the succeeding fiscal year. The schedule must take into
2 consideration county variations, including population, the number of residents living in unincorporated areas,
3 assessed valuation, motor vehicle registrations, building permits, and other factors considered necessary to
4 reflect the variations in the workloads and responsibilities of county officials as well as the tax resources of the
5 county.

6 (d) A recommended compensation schedule requires a majority vote of the county compensation
7 board, and at least two county commissioners must be included in the majority. A recommended compensation
8 schedule may not reduce the salary of a county officer that was in effect on May 1, 2001.

9 (e) The provisions of this subsection (4) do not apply to a county that has adopted a charter form
10 of government or to a charter, consolidated city-county government."

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